

[template] Confidentiality Agreement

THIS AGREEMENT is made on the ____ day of _____, 20

BETWEEN:

1. **Coforma** (ABN 77 809 392 946) Queensland, Australia (the "Disclosing Party").

AND

2. **[Full Name of Individual]** of [Individual's Address] (the "Recipient").

BACKGROUND

- A. The Disclosing Party is engaged in the development of a confidential and proprietary software application, specifically a HR Technology Platform (the "Project").
- B. The Recipient will be granted access to certain Confidential Information (as defined below) for the sole purpose of contributing to the Project in any way, including but not limited to, access to the Project's GitHub repository.
- C. The Disclosing Party wishes to protect its Confidential Information and the Recipient agrees to maintain the confidentiality of such information in accordance with the terms of this Agreement.

AGREEMENT

1. Definition of Confidential Information

- 1.1. "Confidential Information" means any and all information and data, in any form, disclosed by the Disclosing Party to the Recipient in connection with the Project. It explicitly includes, but is not limited to:
 - 1.1.1. All source code, object code, software, scripts, libraries, and related documentation.
 - 1.1.2. All designs, architectural diagrams, algorithms, trade secrets, know-how, inventions, technical data, and any other artefacts contained within the Project's GitHub repository.

- 1.1.3. Business plans, strategic information, financial data, and any other information that is marked or identified as confidential or would be reasonably understood to be confidential in nature.
- 1.2. Confidential Information does not include information that:
 - 1.2.1. Is or becomes publicly available through no fault of the Recipient.
 - 1.2.2. Is rightfully received by the Recipient from a third party without a duty of confidentiality.
 - 1.2.3. Is independently developed by the Recipient without reference to the Confidential Information.
 - 1.2.4. Is required to be disclosed by law, provided the Recipient gives the Disclosing Party prompt written notice to allow for a protective order to be sought.

2. Obligations of the Recipient

- 2.1. The Recipient agrees to:
 - 2.1.1. Hold all Confidential Information in the strictest confidence and to implement all reasonable security measures to protect it.
 - 2.1.2. Not disclose, distribute, or disseminate any Confidential Information to any third party without the prior express written consent of the Disclosing Party.
 - 2.1.3. Use the Confidential Information solely for the purpose of contributing to the Project and for no other purpose whatsoever.
 - 2.1.4. Not copy, photograph, replicate, or reverse engineer any Confidential Information, in whole or in part, except as may be strictly necessary to perform their duties for the Project. Any such authorised copies remain subject to the terms of this Agreement.

3. Return of Information

- 3.1. Upon the termination of the Recipient's involvement in the Project, or at any time upon the Disclosing Party's written request, the Recipient shall immediately:
 - 3.1.1. Cease all use of the Confidential Information.

- 3.1.2. Return to the Disclosing Party all documents and tangible materials containing Confidential Information.
- 3.1.3. Permanently and securely erase all electronic copies of Confidential Information from all computer systems, networks, and storage devices.
- 3.1.4. Provide a written certification of compliance with this clause upon request.

4. Term

- 4.1. The obligations of confidentiality set out in this Agreement shall commence on the date of this Agreement and shall continue in perpetuity.

5. Breach and Remedies

- 5.1. The Recipient acknowledges that any breach of this Agreement may cause irreparable harm to the Disclosing Party for which monetary damages would be an inadequate remedy.
- 5.2. In the event of a breach or threatened breach, the Disclosing Party shall be entitled to seek injunctive relief, in addition to any other legal or equitable remedies available, to prevent or restrain such a breach.
- 5.3. The Recipient agrees to indemnify the Disclosing Party against any and all losses, damages, costs, and expenses incurred as a result of the breach of this Agreement.

6. No Licence

- 6.1. No rights or licences to any intellectual property of the Disclosing Party are granted to the Recipient under this Agreement, other than the limited right to use the Confidential Information strictly for the purposes of the Project.

7. General Provisions

- 7.1. Governing Law and Jurisdiction: This Agreement shall be governed by and construed in accordance with the laws of Queensland, Australia. The parties irrevocably submit to the exclusive jurisdiction of the courts of Queensland.
- 7.2. International Application: The Recipient agrees to be subject to the jurisdiction stipulated in clause 7.1, regardless of their country of residence or the location from which they access the Confidential Information.

- 7.3. Entire Agreement: This Agreement constitutes the entire understanding between the parties concerning its subject matter.
- 7.4. Severability: If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall continue to be valid and enforceable.

The parties have executed this Agreement as of the date first above written.

THE DISCLOSING PARTY

Signed for and on behalf of **Coforma (ABN 77 809 392 946)**:

(Signature)

Name: _____

Title: _____

THE RECIPIENT

Signed by **[Full Name of Individual]**:

(Signature):